



Council

An Extra Ordinary Meeting of the City of Lismore Council will be held at the Council Chambers on Tuesday, 22 June 2021 at 6pm

Members of Council are requested to attend.

Lismore City Council acknowledges the people of the Bundjalung nation, traditional custodians of the land on which we work.

Michael Donnelly
Acting General Manager

17 June 2021



ETHICAL DECISION MAKING AND CONFLICTS OF INTEREST

A guiding checklist for councillors, staff and community committees

Ethical decision making

- Is the decision or conduct legal?
- Is it consistent with Government policy, Council's objectives and Code of Conduct?
- What will the outcome be for you, your colleagues, the Council, anyone else?
- Does it raise a conflict of interest?
- Do you stand to gain personally at public expense?
- Can the decision be justified in terms of public interest?
- Would it withstand public scrutiny?

Conflict of interest

A conflict of interest is a clash between private interest and public duty. There are two types of conflict:

- Pecuniary – an interest that you have in a matter because of a reasonable likelihood or expectation of appreciable financial gain or loss to yourself or another person or entity defined in part 4 of the Lismore City Council Code of Conduct with whom you are associated.
- Non-pecuniary – a private or personal interest that you have that does not amount to a pecuniary interest as defined in the Lismore City Council Code of Conduct. These commonly arise out of family or personal relationships, or out of involvement in sporting, social, religious or other cultural groups and associations, and may include an interest of a financial nature.

The test for conflict of interest

- Is it likely I could be influenced by personal interest in carrying out my public duty?
- Would a fair and reasonable person believe I could be so influenced?
- Conflict of interest is closely tied to the layperson's definition of "corruption" – using public office for private gain.
- Important to consider public perceptions of whether you have a conflict of interest.

Identifying problems

- Do I have private interests affected by a matter I am officially involved in?
- Is my official role one of influence or perceived influence over the matter?
- Do my private interests' conflict with my official role?

Disclosure and participation in meetings

- A Councillor or a member of a Council Committee who has a pecuniary interest in any matter with which the Council is concerned and who is present at a meeting of the Council or Committee at which the matter is being considered must disclose the nature of the interest to the meeting as soon as practicable.
- The Councillor or member must not be present at, or in sight of, the meeting of the Council or Committee:
 - a. at any time during which the matter is being considered or discussed by the Council or Committee, or
 - b. at any time during which the Council or Committee is voting on any question in relation to the matter.

No Knowledge - a person does not breach this clause if the person did not know and could not reasonably be expected to have known that the matter under consideration at the meeting was a matter in which he or she had a pecuniary interest.

Non-pecuniary Interests - Must be disclosed in meetings.

There are a broad range of options available for managing conflicts & the option chosen will depend on an assessment of the circumstances of the matter, the nature of the interest and the significance of the issue being dealt with. Non-pecuniary conflicts of interests must be dealt with in at least one of the following ways:

- It may be appropriate that no action be taken where the potential for conflict is minimal. However, Councillors should consider providing an explanation of why they consider a conflict does not exist.
- Limit involvement if practical (eg. Participate in discussion but not in decision making or vice versa). Care needs to be taken when exercising this option.
- Remove the source of the conflict (eg. Relinquishing or divesting the personal interest that creates the conflict)
- Have no involvement by absenting yourself from and not taking part in any debate or voting on the issue as of the provisions in the Code of Conduct (particularly if you have a significant non-pecuniary interest)

Whilst seeking advice is generally useful, the ultimate decision rests with the person concerned.

Agenda

- 1. Opening of Meeting**
- 2. Acknowledgement of Country**
- 3. Local Government – Pause for personal reflection**
- 4. Apologies and Leave of Absence**
- 5. Disclosure of Interest**
- 6. Mayoral Minute(s) and Condolence Motions**
- 7. Notice of Rescission Motions**
- 8. Notice of Motions**
- 9. Public Access Session on Agenda Items**
- 10. Altering Order of Business (Consideration of altering the order of business to debate matters raised during Public Access)**
- 11. Matters Arising**
- 12. Reports of the General Manager**
 - 12.1 2021/22 Capital Works & Fleet Replacement Program - Delegations to General Manager to Determine Tenders and Award Contracts6
- 13. Committee Recommendations**
- 14. Documents for Signing and Sealing**
- 15. Financial Assistance – Section 356**
- 16. Confidential Business**
 - 16.1 Recruitment of General Manager8

Reports of the General Manager



Report

Subject 2021/22 Capital Works & Fleet Replacement Program - Delegations to General Manager to Determine Tenders and Award Contracts

TRIM Record No BP21/532:EF11/452-03

That Council alter point 2 of the resolution from the Ordinary Council Meeting on 15 June 2021 to read

2. In accordance with Section 393B(2) of the *Local Government (General) Regulation 2005*, in the event that a capital works tender requires determination within the Council caretaker period, the General Manager is authorised to write to the Minister for Local Government seeking consent to exercise its functions relating to the award of contracts.

Background

The resolution passed on 15 June 2021 included the following point, which should be amended to reference the correct legislation:

2. In accordance with Section 393B(2) of the *Local Government Act, 1993*, in the event that a capital works tender requires determination within the Council caretaker period, the General Manager is authorised to write to the Minister for Local Government seeking consent to exercise its functions relating to the award of contracts.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP21/532:EF11/452-03

Confidential Business



Confidential Matters–Closed Council Meeting

A Council may close to the public only so much of its meeting as comprises the receipt or discussion of any of the following:

Section 10A(2) – Local Government Act 1993:

- a) personnel matters concerning particular individuals;
- b) the personal hardship of any resident or ratepayer;
- c) information that would, if disclosed, confer a commercial advantage of a person with whom the Council is conducting (or proposes to conduct) business;
- d) commercial information of a confidential nature that would, if disclosed:
 - i) prejudice the commercial position of the person who supplied it, or
 - ii) confer a commercial advantage on a competitor of the Council, or
 - iii) reveal a trade secret;
- e) information that would, if disclosed, prejudice the maintenance of law;
- f) matters affecting security of the Council, Councillors, Council staff or Council property;
- g) advice concerning litigation, or advice, that would otherwise be privileged from production in legal proceedings on the grounds of legal professional privilege;
- h) information concerning the nature and location of a place or an item of Aboriginal significance on community land.

Clause 34 of Council Code of Meeting Practice

Representations from the public as to whether part of the meeting should be closed to the public can be made after the motion to close the meeting has been moved and seconded for a period of 10 minutes.

Recommendation

That the Council exclude members of the press and public from the meeting and move into Closed Council Meeting to consider the following matters:

Item	16.1 Recruitment of General Manager
Grounds for Closure	Section 10A(2) (a):
Public Interest	Discussion of this matter in an open meeting would on balance be contrary to the public interest because it relates to: personnel matters concerning particular individuals (other than councillors).